

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(Civil Appellate Jurisdiction)**

First Miscellaneous Appeal No. 208 of 2021
With
Civil Rule No. 261 (FM) of 2021

In the matter of:

Md. Idris Dewan, son of late Al-haj Sultan Ahmed Dewan of 315, Dewan Building, Village-Dewan Bari, Post Office- Bandar-4100, Police Station- Doublemooring, District-Chattogram and others.

... Appellants

-Versus-

Mrs. Nur Nahar Begum, daughter of late Lal Mia Sawdagar of Village- 1 no. Supariwala Para, Post Office- Pathantuli, Police Station- Doublemooring, District- Chattogram and others.

...Respondents.

Mr. Md. Majharul Islam, Advocate

...For the appellants-petitioners

Mr. Pronay Kanti Roy, Advocate

....For the respondent-opposite-party nos. 1 and 2

Heard and Judgment on 28.10.2024.

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Md. Bashir Ullah

Md. Mozibur Rahman Miah, J.

Since the point of law and fact so figured in the appeal and that of the rule are intertwined, they have been heard together and are being disposed of by this single judgment.

At the instance of the 3rd parties, this appeal is directed against the judgment and order dated 21.10.2020 passed by the learned Additional District Judge, 5th Court, Chattogram in Waqf Miscellaneous Case No. 24 of 2018 filed under section 35(1) of the Waqfs Ordinance, 1962 allowing the case and setting aside the order dated 20.11.2017 passed by the Administrator of Waqfs, Dhaka in E.C. No. 17783 of 2017.

In a nutshell, the case of the 3rd parties herein the appellant is:

The present respondent no. 1 namely, Mrs. Nur Nahar Begum filed an application under section 50 of the Waqfs Ordinance, 1962 before the Administrator of Waqfs, Dhaka stating *inter alia* that, she got the property from her father vide a registered sale deed dated 18.06.1946 bearing No. 2063 measuring an area of 11.60 decimals of land and after the demise of her father, she started enjoying title and possession over that land and accordingly P.S and B.S. record was prepared in her name. She also got her name mutated in the khatian through Mutation Case No. 3-0685/06 dated 15.06.2006 and has paid land development tax (খাজনা) up to 1423 B.S and thereby has been enjoying title and possession over the said purchased land all along. Lately, she came to learn that her uncle namely, Al-haj Sultan Ahmmed Dewan by declaring her owned property as waqf property executed a deed bearing no. 12048 dated 11.07.1980 and thereby created a Waqf Estate titled “Al-haj Sultan Ahmmed Dewan T.K Waqf Estate”

bearing No. E.C. 17783. Since the said property was illegally incorporated as waqf property, she then filed the application before the Administrator for releasing the same. In view of filing the said petition, the Administrator of Waqfs then issued letters one, to the Waqfs Inspector, Chattogram (Zone-4) as well as the *Mutawalli* to inspect the property and to submit report as well as opinion. Accordingly, the Inspector of Waqfs, Chattogram (Zone-4) by his report dated 04.04.2017 and the *Mutawalli*, Mohammad Nizam Uddin Dewan by his opinion dated 03.04.2017 held that, the land included in the waqf estate belonged to the petitioner. Regardless, the Administrator of Wafqs undersigned by one, Md. Mosharaf Hossain, Assistant Administrator of Waqfs, Dhaka, Bangladesh by office order dated 21.11.2017 rejected the application of the petitioner herein respondent no. 1 holding that, two writ petitions bearing Writ Petition Nos. 1633 of 2016 and 2725 of 2016 had been pending.

Feeling aggrieved by and dissatisfied with the said order passed by the Administrator of Waqfs, the respondent no. 1 as petitioner then preferred a Miscellaneous Case under section 35(1) of the Waqfs Ordinance, 1962 before the District Judge, Chattogram being Waqf Miscellaneous Case No. 24 of 2018 narrating similar averments so made in the application before Administrator of Waqfs under section 50 of the Waqfs Ordinance, 1962 and finally prayed for allowing the same.

It is worthwhile to mention here that, in the said Waqfs Miscellaneous Case, the *Mutawalli* as well as the Administrator of Waqfs and the government were made opposite-parties and the learned District Judge in order to dispose of the said Case, framed two different issues and

took testimony of the two witnesses adduced by the petitioner, the respondent no. 1. Since the opposite-parties to the said case herein the respondent nos. 2-4 did not turn up to oppose the case, those two witnesses could not be cross-examined. Eventually, the learned District Judge after considering the materials and evidence on record allowed the said Miscellaneous Case on setting aside the order dated 20.11.2017 passed in E.C. No. 17783 of 2017 and thereby released 11.60 decimals of land from the waqf estate namely, “Al-haj Sultan Ahmmed Dewan T.K Waqf Estate”.

It is at that stage, the descendents of the *waqif* named, Al-haj Sultan Ahmmed Dewan and another as appellants preferred this appeal.

After preferring the appeal, the appellants as petitioners also filed an application for staying operation of the impugned judgment and order dated 21.10.2020 passed in the Waqf Miscellaneous Case and this court vide order dated 08.06.2021 stayed the operation of the impugned Judgment and order for a period of 6(six) months which was lastly extended on 31.07.2022 till disposal of the rule which gave rise to Civil Rule No. 261(FM) of 2021.

Mr. Md. Majharul Islam, the learned counsel appearing for the appellants-petitioners upon taking us to the impugned judgment and order at the very outset submits that, the learned District Judge erred in law in not taking into consideration of the vital facts that though the property was alleged to have owned by the respondent no. 1 but soon after executing and registering the said sale deed dated 18.06.1964, there had been an agreement on 18.05.1955 between two brothers namely, Hazi Lal Miah, the father of the petitioner, respondent no. 1 and Sultan Ahmmed Dewan, the

predecessor of the appellants (Annexure-‘C’ to the supplementary-affidavit filed by the appellants) where it has been asserted though the property had been transferred in her favour yet the same will be treated as the property of the 2nd party to the agreement that is, Sultan Ahmmed Dewan and by virtue of that agreement, the property in question that is, 11.6 decimals of land has rightly been transferred by the predecessor of the appellants in favour of the waqf estate on 11.07.1980 having no scope to claim title and ownership over the said property by the respondent no. 1.

The learned counsel further contends that, though the respondent no. 2, *Mutawalli* submitted his opinion but at the relevant time a Writ Petition being Writ Petition No. 1633 of 2016 was filed by him which was pending at that time so he had no authority to furnish any opinion finding the ownership of the property-in-question for respondent no. 1.

The learned counsel by referring to the order so passed by the Administrator of Waqfs dated 21.11.2017 against which the Waqf Miscellaneous Case No. 24 of 2018 was preferred by the respondent no. 1 also contends, the said Administrator of Waqfs had no authority to pass the said order (though on his behalf an Assistant Administrator of Waqfs passed the order) because at that point of time, the Deputy Commissioner, Chattagram had been performing the authority as of Administrator of Waqfs.

The learned counsel by referring to the provision of section 50 of the Waqfs Ordinance, 1962 also contends that, there has been no authority of the Administrator to examine any title and ownership of a waqf property and for that obvious reason, the Administrator has rightly evaded in taking

into consideration of the claim of the petitioner, respondent no. 1 about the claim of title over the suit property and therefore, the order dated 20.11.2017 so passed by him is liable to be sustained.

The learned counsel by further referring to the agreement dated 18.05.1955 also submits that, since it has been agreed by two brothers as has been stated hereinabove that in spite of transferring 11.60 decimals of land the ownership of the same will lie in his favour that is, the predecessor of the appellants and thus in view of agreeing that condition, the respondent no. 1 cannot claim the suit property to be her own property which is rather barred by principle of waiver and acquiescence but the said proposition has not been taken into consideration by the learned District Judge while allowing the Miscellaneous Case.

However, in support his submission, the learned counsel has placed his reliance in a decision so have been published in an online legal journal namely, "*Manupatra*" and submits that, the *ratio* so have been settled in that decision is equally applicable in the facts and circumstances of the instant case and finally prays for allowing the appeal by setting aside the impugned judgment and order.

On the contrary, Mr. Pronoy Kanti Roy, the learned counsel appearing for the respondent-opposite-party nos. 1 and 2 submits that, the learned District Judge has rightly passed the impugned order which is liable to be sustained.

Be that as it may, we have considered the submissions so advanced by the learned counsel for the appellants-petitioners and that of the respondent-opposite-party nos. 1 and 2 and perused the memorandum of

appeal and that of the application for stay and all the documents appended therewith vis-à-vis the application filed by the respondent no. 1 under section 50 of the Waqfs Ordinance, 1962 and the order passed by the Administrator of Waqfs dated 20.11.2017 supplied by the learned counsel for the appellants-petitioners.

Together, we have also very meticulously gone through the provision provided in section 50 of the said Ordinance and the decision so placed by the learned counsel for the appellants-petitioners.

To begin with, we would like to confine our discussion followed by observation keeping ourselves within the ambit of the provision provided in section 50 of the Waqfs Ordinance, 1962 to find whether the claim of the appellants-petitioners at this stage can be sustained. For ready reference, we thus feel it expedient to reproduce section 50 of the Waqfs Ordinance, 1962 which runs as follows:

“50. Any question whether a particular property is waqf property or not shall be decided by the Administrator:

Provided that the mutawalli or any person aggrieved by any decision or order of the Administrator in this behalf may, within three months from the date of such decision or order, submit a petition to the District Judge in accordance with the provision of sub section (1) of section 35; and if such a petition is filed, the provisions of section 35 shall apply. ”

On going through the first part of section 50, we find that, Administrator has been mandated to decide any property to be a waqf property or not. And in the proviso to that section, it has also been spelt out that, if any person becomes aggrieved with any order by the Administrator be it *Mutawalli* or any persons aggrieved may file a petition to the District Judge under section 35(1) of the Waqfs Ordinance. In view of the said provision, the respondent no. 1 since became aggrieved on rejection of her application, then she filed Waqf Miscellaneous Case No. 24 of 2018 where the *Mutawalli*, Administrator of Waqfs as well as the government were made parties. But since against the order passed by the Administrator under section 50 of the Ordinance, the present appellants-petitioners did not prefer any petition under section 35(1) of the Ordinance before the District Judge so as a third party they have no *locus standi* to prefer the instant appeal for the first time as respective laws does not provide any avenue for them to prefer the instant appeal even if they are the descendents of the *Wakif*. So in view of the above, the instant Miscellaneous Appeal filed by the appellants is not tenable in the eye of law.

Section 50 of the Waqfs Ordinance, 1962 in an unambiguous term vested authority upon the Administrator of Waqfs to decide the title and ownership of the property under challenge like an ordinary civil court basing on evidence or other materials on record while releasing the same from the waqf estate but without doing so, the Administrator of Waqfs undersigned by the Assistant Administrator in a very cursory and slipshod manner in a single line rejected the application of the respondent no. 1 holding that, two writ petitions had been pending before this court which is

beyond the express provision of section 50 of the Ordinance and a classic case of non-application of judicial mind of the Administrator because it has been admitted even by the learned counsel for the appellants-petitioners that, those two writ petitions were pending challenging the propriety of the appointment of the *Mutawalli* in the said estate having no nexus in determining title and ownership of the property, respondent no. 1 prayed for release.

By contrast, on going through the impugned judgment and order, we find that, after acquiring the property by the respondent no. 1 back in the year 1946 from her father, two consecutive records in respect of the suit land that is, P.S and B.S records were prepared in her name and even she mutated her name in the khatian in the year 2006 and paid rent (খাজনা) up to 1423 B.S. which manifestly clear that, by virtue of the sale deed, the respondent no. 1 acquired indefeasible title and possession over the suit land. In that regard, the learned counsel for the appellants-petitioners contends that, long after 37 years of making the suit property as waqf property, she prayed for its release which cannot sustain. But given the said consecutive records followed by mutation and rent paid by the respondent no. 1, the said contention does not substantiate. However, all these points have correctly been addressed by the learned District Judge while passing the impugned judgment and order.

Then again, on going through the decision so placed by the learned counsel for the appellants-petitioners, we find that, the decision can in no way assist the case of the appellants because in that cited decision, the appellant filed a suit before an ordinary civil court challenging inclusion of

his property in a waqf estate and release of the same without filing application before the Administrator of Waqfs under section 50 of the Waqfs Ordinance where it has been settled that the petitioner should have filed a petition for releasing property from waqf estate before the Administrator not a separate suit should have filed. So that very decision is totally inapplicable in the facts and circumstances of the instant case.

Regard being had to the above facts and circumstances, we don't find any shred of illegality in the impugned judgment and order which is liable to be sustained.

Accordingly, the appeal is dismissed however without any order as to cost.

Since the appeal is dismissed, the connected rule being Civil Rule No. 261 (FM) of 2021 is hereby discharged.

The order of stay granted at the time of issuance of the rule stands recalled and vacated.

Let a copy of this judgment along with the lower court records be transmitted to the court concerned forthwith.

Md. Bashir Ullah, J.

I agree.